

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF RICHMOND

STARR JEFFREYS,

## SUMMONS

Plaintiff, Index No.:

-against-

The Basis of Venue is:  
Location of IncidentTHE CITY OF NEW YORK, NYPD DETECTIVE  
DENISE INGA, Shield No. 5395, and NYPD POLICE  
OFFICERS JOHN/JANE DOE NUMBERS 1-10,Plaintiff designates Richmond  
County as the place of trial.

Defendants.

## To the above named Defendants:

**You are hereby summoned** to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York  
March 21, 2022

Yours, etc.

C. Cass LuskinCass Luskin, Esq.  
Shulman-Hill, PLLC  
*Attorneys for Plaintiff*  
1 State Street Plaza  
15<sup>th</sup> Floor  
New York, New York 10004  
(212) 221-1000

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NYPD DETECTIVE DENISE INGA, SHIELD NO. 5395, 108<sup>th</sup> Precinct Detective  
Squad; 5-47 50th Avenue, Queens, NY 11101

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF RICHMOND

----- X

STARR JEFFREYS,

INDEX NO.:

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NYPD DETECTIVE  
DENISE INGA, Shield No. 5395, and NYPD POLICE  
OFFICERS JOHN/JANE DOE NUMBERS 1-10,

JURY TRIAL DEMANDED

Defendants.

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Plaintiff STARR JEFFREYS, by her attorneys, Shulman and Hill, PLLC, as and for her Verified Complaint herein, alleges upon information and belief as follows:

### **PRELIMINARY STATEMENT**

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On July 13, 2021, at approximately 8:00 a.m., plaintiff STARR JEFFREYS, while lawfully inside the 120<sup>th</sup> Precinct, at 78 Richmond Terrace, County of Richmond, New York, was subject to an unlawful stop, question, frisk, search, false arrest, and false imprisonment by the defendant New York City police officers. In addition, Plaintiff suffered bruising and injuries to her wrists and buttocks, \$5,000.00 in private criminal defense counsel costs, as well as mental and emotional injury. Plaintiff was unlawfully imprisoned at the 120<sup>th</sup> Precinct Police Station for approximately 10 hours before she was released. Plaintiff was deprived of her rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802. Plaintiff was deprived of her constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, falsely arrested, falsely imprisoned, in violation of the Fourth, Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

### **PARTIES**

2. Plaintiff STARR JEFFREYS is a resident of the state of Connecticut.

3. NYPD DETECTIVE DENISE INGA, SHIELD NO. 5395, is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.

4. NYPD DETECTIVE DENISE INGA, SHIELD NO. 5395, is currently assigned to the 108<sup>th</sup> Precinct Detective Squad and was at all times relevant herein, assigned to the 120<sup>th</sup> or the 108<sup>th</sup> Precinct.

5. NYPD DETECTIVE DENISE INGA, SHIELD NO. 5395, is being sued in her individual and official capacities.

6. NYPD POLICE OFFICERS JOHN AND JANE DOE NUMBERS 1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

7. NYPD POLICE OFFICERS JOHN AND JANE DOE NUMBERS 1-10 were at all times relevant herein, assigned to the 120<sup>th</sup> Precinct.

8. NYPD POLICE OFFICERS JOHN AND JANE DOE NUMBERS 1-10 are being sued in their individual and official capacities.

9. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

10. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

11. Plaintiff in furtherance of her causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK in compliance with the Municipal Law Section 50 and in accordance with New York State law.

12. In accordance with New York State law and General Municipal Law Section 50, plaintiff testified at a hearing held pursuant to General Municipal Law Section 50-H on August 25, 2021.

13. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claims.

14. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

15. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

### **STATEMENT OF FACTS**

16. On July 13, 2021, at approximately 8:00 A.M., Plaintiff was lawfully present in the vicinity of the 120<sup>th</sup> Precinct of the NYPD, located at 78 Richmond Terrace in Richmond County, New York, when defendant police officers unlawfully stopped, questioned, searched, and falsely arrested Plaintiff without probable cause or legal justification.

17. Plaintiff currently and for the past ten years has owned and operated a dance studio called Starr's Studio of Dance in Kent, Connecticut.

18. Prior to the day of the relevant incident, Plaintiff was contacted via phone by Detective Denise Inga in regards to a complaint that Detective Inga was investigating alleging a violation of a protective order.

19. Upon being initially contacted by Detective Inga, Plaintiff hired a private attorney to defend her against the potential criminal charge for \$5,000.00.

20. The violation of a protective order was alleged to have taken place inside an establishment called Profundo Day Club, located at 808 Queens Plaza S, Astoria, NY 11101, on July 4, 2021.

21. Upon learning of the allegation from Detective Inga, the Plaintiff and her attorney began investigating immediately, and contacted staff of Profundo Day Club to determine whether the protected party was at their establishment in the relevant timeframe.

22. The managing partner of Profundo Day Club was sure that the protected party had not entered the establishment on the date where the violation of a protective order was alleged to have occurred.

23. The managing partner of Profundo Day Club knew that the protected party was not present because he had previously issued a notice to his staff saying that the protected party was not to be admitted to Profundo Day Club on July 4, 2021.

24. The managing partner of Profundo Day Club knew that the protected party was not present because every person who enters Profundo Day Club has their identity verified, and a review of those records shows that nobody with the protected party's name entered Profundo Day Club on July 4, 2021.

25. The managing partner of Profundo Day Club wrote an email explaining how the protected party could not have possibly been inside Profundo Day Club on July 4, 2021, and sent that email to attorney Cary London.

26. On July 13, 2021, the day before Plaintiff was supposed to surrender at the 120<sup>th</sup> Precinct, Mr. London forwarded the email to Detective Inga, along with another email to the same effect from another individual at Profundo Day Club.

27. On information and belief, Detective Inga took no additional steps, nor did she perform any follow up investigation, including sending a confirmatory e-mail to the Profundo Day Club.

28. At 8AM on July 13, 2021, Plaintiff timely surrendered at the 120<sup>th</sup> Precinct in Richmond, County, NY. It was at this point that the defendant NYPD officers began to unlawfully arrest the plaintiff, restraining her with metal handcuffs and subjecting her to an unlawful pat-down search.

29. At no time relevant herein did Plaintiff commit a crime or violate the law in any way, nor did the police officers have an objective reason to accuse Plaintiff of committing a crime or violating the law in any way.

30. Nevertheless, Plaintiff was unlawfully arrested and handcuffed by defendant officers without legal justification or probable cause, and then unlawfully fingerprinted, photographed and searched.

31. Plaintiff did not resist arrest.

32. The Defendant Officers then placed the Plaintiff onto a metal bench outside of a holding cell and handcuffed her to the bench so she could not move.

33. At no point did Defendant Officers recover any drugs, weapons, or other illegal contraband from Plaintiff or from a location that was in Plaintiff's possession, custody, or control.

34. While handcuffed to the bench, Plaintiff suffered significant bruising to the backs of her legs and upper thighs.

35. Subsequently, Plaintiff treated the bruises to her legs and thighs with Arnica Gel and hot/cold compresses, but the bruising persisted for two weeks after the injury and Plaintiff was forced to explain to the children in her dance classes how she had come to be so bruised.

36. While handcuffed to the bench, Plaintiff suffered moderate bruising to her wrists from over-tight handcuffs which also were treated with Arnica Gel and hot/cold compresses.

37. While handcuffed to the bench, Plaintiff suffered serious psychological and emotional trauma.

38. Plaintiff suffered economic injuries as direct result of the incident, including cancelling an entire day of dance classes at her business and the concurrent lost business she suffered, valued at approximately \$2,000; paying for gas and tolls to and from the Precinct, valued at approximately \$300, and; arranging for care for her pet dog while she was absent, valued at approximately \$125.

39. On July 13, 2021, after approximately 12 hours in custody, the Plaintiff was released from custody at the 120th Precinct.

40. As Plaintiff was exiting the Precinct, she encountered Detective Inga, who appeared to be upset.

41. Detective Inga told Plaintiff that Plaintiff should be happy that Plaintiff was leaving.

42. Plaintiff responded and described the ways in which she was upset about her treatment that day, to which Detective Inga told her, "Get the fuck out of my precinct before I re-handcuff you."

43. Some of the police officer defendants observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably searching, seizing, using excessive force, falsely arresting and imprisoning, humiliating, and denying Plaintiff the right to due process and a fair trial.

44. The unlawful use of excessive force by the individually named defendants caused Plaintiff to sustain physical, psychological and emotional trauma.

**FIRST CAUSE OF ACTION**  
**Unlawful Stop, Question, and Search**

45. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

119. The illegal approach, pursuit, stop and grab employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

120. The conduct of defendants in approaching, stopping, and grabbing Plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

121. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the laws of the State of New York.

122. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

123. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

### **SECOND CAUSE OF ACTION**

#### **Violation of Fourth and Fourteenth Amendment Rights: Unlawful Seizure and Deprivation of Liberty**

124. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

125. The individually named police officer defendants, while acting in concert and within the scope of their authority, caused Plaintiff to be seized, unlawfully searched, falsely arrested, and falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of Plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

126. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional and psychological injuries.

### **THIRD CAUSE OF ACTION**

#### **False Imprisonment**

127. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

128. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

129. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the laws of the State of New York and the United States Constitution.

130. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

131. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

132. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to loss of liberty, emotional and psychological injuries.

#### **FOURTH CAUSE OF ACTION**

##### **Violation of Plaintiff's Fourth And Fourteenth Amendment Rights: Excessive Force**

133. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

134. The use of excessive force by defendants by, amongst other things, roughly handcuffing, and then forcing the Plaintiff to remain handcuffed for many hours constituted objectively unreasonable physical seizures of Plaintiff in violation of her rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

135. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

#### **FIFTH CAUSE OF ACTION**

##### **Negligent Infliction of Emotional Distress**

136. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

137. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

138. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed Plaintiff by the laws and Constitution of the State of New York.

139. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the laws of the State of New York.



140. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

141. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

142. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

### **SIXTH CAUSE OF ACTION**

#### **Negligent Hiring, Retention, Training and Supervision**

143. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

144. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

145. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional and psychological injuries.

### **SEVENTH CAUSE OF ACTION**

#### **Failure to Intervene**

146. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

147. The defendants that did not physically touch Plaintiff, but were present when other officers violated Plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

148. Defendants failed to intervene to prevent the unlawful conduct described herein.

149. As a result of the foregoing, Plaintiff's suffered significant injury, her liberty was restricted for an extended period of time, she was put in fear of her safety, and she was humiliated and subject to other physical constraints.

150. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the laws of the State of New York.

151. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

152. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

153. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

### EIGHTH CAUSE OF ACTION

#### **Individual Defendant Officer's Violation of Plaintiff's AC 8-802 Rights**

154. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

155. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

156. The acts of Defendant Officers caused Plaintiff to be deprived of her rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in her person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

157. The Defendant Officers, while in uniform, unlawfully seized, frisked, and searched the Plaintiff, before detaining plaintiff and further causing her detention for approximately 24 hours in total, as well as used excessive force in applying over-tight handcuffs and leaving those handcuffs on for several hours without reason therefore.

158. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

### NINTH CAUSE OF ACTION

#### **Individual Defendant Officer's Failure to Intervene in Violation of Plaintiff's AC 8-802 Rights**

159. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

160. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

161. Defendant Officers had a duty to protect Plaintiff from violations of her rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in her person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

162. The Defendants that did not physically touch Plaintiff, but were present when other officers violated Plaintiff's AC 8-802 right against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

163. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiff from violation of her rights.

164. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

#### TENTH CAUSE OF ACTION

#### **City-Employer's Liability for Defendant Officer's Violation of Plaintiff's AC 8-802 Rights**

165. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

93. Defendant Officers are "covered individuals" as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolmen.

94. The City of New York, as the employer of the covered individual Defendant Officers, is liable to the Plaintiff for the wrongdoing of the covered individual Defendant Officers.

95. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

96. The acts of Defendant Officers caused Plaintiff to be deprived of her rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in her person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

97. The Defendant Officers, while in uniform, unlawfully seized, frisked, and searched the Plaintiff, before detaining plaintiff and further causing her detention for approximately 24 hours in total, as well as used excessive force in applying over-tight handcuffs and leaving those handcuffs on for several hours without reason therefore.

98. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

### **ELEVENTH CAUSE OF ACTION**

#### **City-Employer's Liability for Defendant Officer's Failure to Intervene in Violation of Plaintiff's AC 8-802 Rights**

99. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

100. Defendant Officers are "covered individuals" as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolmen.

101. The City of New York, as the employer of the covered individual Defendant Officers, is liable to the Plaintiff for the wrongdoing of the covered individual Defendant Officers.

102. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

103. Defendant Officers had a duty to protect Plaintiff from violations of her rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in her person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

104. The Defendants that did not physically touch Plaintiff but were present when other officers violated Plaintiff's AC 8 – 802 rights against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

105. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiff from violation of her rights.

106. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

### **TWELFTH CAUSE OF ACTION**

#### **Violation of Article I, § 12 of the New York State Constitution**

107. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

108. Such conduct breached the protections guaranteed to plaintiff by the New York State Constitution, including but not limited to, Article 1, §§ 1, 6, 8, 9, 11, and 12, and including the following rights:

- i. freedom from unreasonable search and seizure of her person and property;
- ii. freedom from arrest without probable cause;
- iii. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion, or legal justification, and of which wrongful detention plaintiff was aware and did not consent;
- iv. freedom from the lodging of false charges against her by police officers and prosecutors, including on information and belief, by some or all of the individual defendants; and
- v. freedom from deprivation of liberty without due process of law.

109. As a direct and proximate result of defendants' deprivations of Plaintiff's rights, privileges, and immunities guaranteed by the New York State Constitution, Plaintiff suffered physical, economic and emotional injuries, as well as a deprivation of liberty.

110. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

111. As a result of the above unconstitutional conduct, the City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

### JURY DEMAND

112. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

### PRAYER FOR RELIEF

**WHEREFORE**, Plaintiff STARR JEFFREYS demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law, and that the Plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988 and 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 801 *et seq.*

Dated: New York, New York  
March 21, 2022

By: C. Cass Luskin  
Cass Luskin, Esq.  
Shulman-Hill, PLLC  
*Attorneys for Plaintiff*  
1 State Street Plaza  
15<sup>th</sup> Floor  
New York, New York 10004  
(212) 221-1000

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NYPD DETECTIVE DENISE INGA, SHIELD NO. 5395, 108<sup>th</sup> Precinct Detective  
Squad; 5-47 50th Avenue, Queens, NY 11101

**ATTORNEY'S VERIFICATION**

**CASS LUSKIN**, an attorney duly admitted to practice before the Courts of the

State of New York, affirms the following to be true under the penalties of perjury:

I am a member of the law firm of **SHULMAN AND HILL PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York  
March 21, 2022

*C. Cass Luskin*

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Cass Luskin